SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Writ Petition (Civil) No. 13 of 2003 (YEAR: 2013)

CORAM: P. SATHASIVAM, RANJANA P. DESAI, RANJAN GOGOI

People's Union for Civil Liberties (PUCL)
... Appellant(s) / Petitioner(s)
Versus
Union of India (NOTA)
... Respondent(s)

Acts Referred:	Representation of the People Act, 1951, Constitution of India
Sections:	Article 19(1)(a), Conduct of Election Rules 1961

JUDICIAL HEADNOTE & SUMMARY

Directed Election Commission to provide a 'None of the Above' (NOTA) button on electronic voting machines, empowering voters to express disapproval of all candidates.

RATIO DECIDENDI

The Court held that: Directed Election Commission to provide a 'None of the Above' (NOTA) button on electronic voting machines, empowering voters to express disapproval of all candidates. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in People's Union for Civil Liberties (PUCL) v. Union of India (NOTA) (Writ Petition (Civil) No. 13 of 2003) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Representation of the People Act, 1951, Constitution of India, particularly Article 19(1)(a), Conduct of Election Rules 1961. Directed Election Commission to provide a 'None of the Above' (NOTA) button on electronic voting machines, empowering voters to express disapproval of all candidates.

OPERATIVE ORDER

ORDER: Decided